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File No.: EXP202315694 (PA/00061/2023)

RESOLUTION OF

PROCEDURE OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 13, 2022. The complaint is directed against OCCIDENT GCO, S.A.U. DE SEGUROS Y REASEGUROS (hereinafter, OCCIDENT), with NIF A28119220, the absorbing company of the dissolved PLUS ULTRA, SEGUROS GENERALES Y VIDA, S.A. The reasons for the complaint are as follows:

Complaint directed against the responsible party for the website www.antares.es, regarding the manner in which user consent is obtained concerning the installation of cookies classified as functional, including Google analytical cookies. Although they are not loaded immediately upon accessing the page, in the tool enabled to manage user consent, that option appears pre-checked. Furthermore, it is argued that the use of third-party cookies such as Google or Zendesk implies an international data transfer (citing the CJEU ruling on the "Schrems II" case).

Along with the complaint, the following documents are submitted:

- Printout of the website <https://www.antares.es>
- Printout from the Chrome browser – Settings - Security and Privacy.
- Printout of a series of screens from the Privacy Policy and Data Processing of the website <https://www.antares.es/cookies.html>, which includes information regarding the exercise of data protection rights and about cookie policies.

On May 26, 2022, the following evidence collected by this Agency was added to the file:

- Cookie policy of OCCIDENT, which lists the following Google Analytics cookies as functional: `_ga`, `_gid`.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on May 31, 2022, as noted in the acknowledgment of receipt in the file.

On June 30, 2022, a response was received by this Agency. Specifically, regarding the use of Google Analytics, it is stated that:

“17. In the complaint that has been forwarded to Plus Ultra through the Resolution, it is stated that, despite the fact that the Court of Justice of the European Union has invalidated the decision on the "EU-US Privacy Shield," personal data would be collected and transferred to the United States through the services of Google Analytics and Zendesk.

18. Plus Ultra is not unaware of the controversy surrounding the use of Google Analytics as a result of the resolutions issued by the French and Austrian supervisory authorities. Therefore—although, unless this party is mistaken, neither the AEPD, nor the European Data Protection Board, nor any court of Justice, at the national or community level, has issued any ruling regarding the aforementioned tool—Plus Ultra decided to adopt certain due diligence measures.

Specifically, by email dated February 23, 2022, the Data Protection Officer signing this document shared the situation of Google Analytics with the Company's Innovation Department in order to assess the advisability of discontinuing the use of these services. For evidentiary purposes, this communication is attached as Document No. 8.

19. Plus Ultra's diligence went, in fact, far beyond what was required, since, as we have already indicated in Allegation One and will elaborate on below, the information collected on the Website does not constitute personal data, and therefore the GDPR does not apply to it.

20. Indeed, while Plus Ultra uses Google Analytics on the Website, its USER ID function is completely disabled, as we have already indicated in Allegation One. This circumstance was expressly confirmed to the Data Protection Officer by the Innovation Department in their email of February 25, 2022, which is attached as Document No. 9.

Consequently, the processing of this information obtained through Google Analytics is not subject to the scope of application of the GDPR (see Article 2.1) and its potential transfer to the United States would not be subject to the requirements established therein.

21. Thus, the information is processed in an absolutely anonymized manner, and consequently, it is impossible for Plus Ultra to identify any potential interested party. This circumstance determines that the information collected by Plus Ultra as a result of the use of Google Analytics falls, as we said, outside the material scope of the GDPR.

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22. In addition to the above, it must be noted that, as of today, and unless this party is mistaken, there is no administrative ruling or judicial decision that, having analyzed the specific case of Google Analytics, has concluded that the North American company violates community regulations; and, consequently, it is not legally admissible to presume otherwise and, therefore, to formulate a legal reproach against a company using the service, without any evidence to the contrary or an unfavorable ruling.

23. At this point, and in case the above is not sufficient, it is important to highlight that the use of anonymized information is a circumstance that is expressly communicated to the users of the Website. Indeed, the cookie policy of the Website explicitly informs users about the use of Google Analytics, detailing that the data collected through this tool is completely anonymous.

Additionally, since June 1, 2022, the cookie policy also includes a detailed explanation on how to disable the add-on, in case the user wishes for their aggregated data not to be included in the reports of Google Analytics, all in strict compliance with the Guide.

The literal wording of the cookie notice on the Website is as follows:

“Our Web pages use Google Analytics, one of the most widely used web analytics services on the Internet. Although this information is collected anonymously, users who wish can prevent their visit data from being included in the reports of Google Analytics by installing the Google Analytics opt-out browser add-on available at <http://tools.google.com/dlpage/gaoptout>. This add-on does not prevent information from being sent to websites through other means than these web analytics services. For more information about cookies, you can consult the Guide on the use of cookies published by the Spanish Agency for Data Protection on its website <https://www.aepd.es/>.”

24. It should also be noted that the cookie notice on the Website concludes with an express reference to the Guide on the use of cookies published by the Spanish Agency for Data Protection, providing for transparency and for the greater information of the interested parties a direct link to the website of that supervisory authority so that users can consult it if they deem it appropriate.

25. Finally, and as a subsidiary point to what has been stated so far, we cannot fail to emphasize that if Plus Ultra has continued to use this tool on the Website (without using, as we have already mentioned and evidenced, the USER ID function), it has been because it has a more than reasonable expectation that its use will ultimately be declared compliant with national and community regulations. A reasonable expectation that derives from the reasons that will be outlined below.

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(i) First, the international data transfers carried out by Google are conducted in accordance with the Standard Contractual Clauses established by the European Commission. This is explicitly stated by

Google in the Data Protection Measures section on the Google Analytics website:

(<https://support.google.com/analytics/answer/6004245?hl=en#zippy=%2Ctransferencias-internacionales>) (Document No. 10).

As is well known, the Standard Contractual Clauses are a mechanism that validates data transfers in accordance with Article 46, paragraph 2.c) of the GDPR. Again, this party is not aware of any administrative ruling or judicial decision that, having analyzed the specific case of Google Analytics, has concluded that the American company materially fails to comply with the content of the aforementioned Standard Contractual Clauses (i.e., there is no evidence to that effect and, therefore, the presumption of compliance should prevail; mere suspicion cannot be sanctioned).

(ii) Secondly, and in light of the resolutions issued by the Austrian and French data protection authorities, Google has implemented additional measures to adapt to this unforeseen situation. These new measures were announced on February 4, 2022, through a communication titled "Regarding International Data Transfers in Google Analytics," available for consultation at the following link:

<https://support.google.com/analytics/answer/11609059?hl=en>, which we submit as Document No. 11. Thus, Plus Ultra, after conducting a set of checks in this regard, believes in good faith that it has solid grounds to trust in the full legality of its actions.

(iii) Furthermore, and in case the above is not sufficient, it is true that countless entities, both private and public, currently use Google Analytics. Indeed, as a sample, Google Analytics is used, among many other examples and for illustrative purposes only, on the official website of the Government of Spain

(<https://www.lamoncloa.gob.es/Paginas/politica-de-cookies.aspx>) or on that of the Ministry of Equality (<https://www.igualdad.gob.es/Paginas/politica-de-cookies.aspx>).

Copies of the aforementioned cookie policies are attached as Documents No. 12 and No. 13, respectively.

This legal and factual circumstance reaffirmed, at the time of conducting its analysis, Plus Ultra's reasonable expectation of acting in accordance with the law.

(iv) Finally, it cannot be overlooked that we are facing an unusual situation of uncertainty, marked by the progress of negotiations between the European Union and the United States to adopt an agreement that regulates international data transfers to the latter jurisdiction. Indeed, as announced on March 25, 2022, the European Union and the United States have reached an agreement for a new Trans-Atlantic Data Privacy.

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Framework that would replace the 2016 Privacy Shield (the corresponding press release is attached as Document No. 14, and its translation into Spanish as Document No. 14 bis).

In this transitional situation, where the details of the new agreement are still unknown, it is reasonable to consider that we are in a state of exception that would justify continuing to use this tool, under the terms and with the precautions adopted through the lens of the most rigorous due diligence by Plus Ultra, until a new regulatory framework that provides more stable legal coverage has been approved. Additionally, very recently (on June 21, 2022, to be precise), the Energy and Commerce Committee of the United States House of Representatives presented the text of the United States Data Protection and Privacy Act, which is expected to be approved soon (the corresponding press release is attached as Document No. 15, and its translation into Spanish as Document No. 15 bis). This new legislative framework is likely to represent a significant change in the paradigm; a circumstance that further exacerbates the exceptional nature and uncertainty of the current regulatory framework applicable to transfers to the United States of America, as well as the difficulty of advising in this area.

26. For all the above reasons, Plus Ultra considers that there is a legitimate expectation to continue using Google Analytics and that the use made by Plus Ultra on the Website has always been in accordance with the law."

THIRD: On May 31, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the

complainant was admitted for processing.

FOURTH: On May 28, 2024, the Director of the Spanish Data Protection Agency agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 44 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on May 29, 2024, as stated in the acknowledgment of receipt in the file.

SIXTH: On June 6, 2024, OCCIDENT submitted a document requesting an extension of the deadline to present allegations.

SEVENTH: On June 7, 2024, the instructing body of the procedure agreed to extend the requested deadline by up to five days, in accordance with the provisions of Article 32.1 of the LPACAP.

The aforementioned agreement was notified to OCCIDENT on June 10, 2024, as stated in the acknowledgment of receipt in the file.

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EIGHTH: On June 18, 2024, a document of allegations was received from the respondent, which, in summary, includes the following considerations:

- The prior investigative actions that the AEPD relies on to adopt the initiation agreement have expired.
- The procedure suffers from formal defects that have caused defenselessness to the company, as the complaint was not transferred, and the description of the facts in the request is very limited.

Furthermore, the AEPD has not respected the functions of the company's data protection officer and the right of defense of OCCIDENT has been violated in this procedure.

- The initiation agreement incorporates documents that cause defenselessness as they are not connected to the specific facts referred to in the complaint.

- It is not appropriate to impose a warning as the company has diligently fulfilled its obligations and no non-compliance has been demonstrated since:

- ☐ The company has not transferred any data of the complainant to Google.

- ☐ The company has not transferred personal data to Google.

- ☐ In any case, the AEPD has not analyzed whether, based on the circumstances of the case, a violation of the GDPR has occurred.

- ☐ The company has acted at all times diligently and with a more than reasonable expectation of complying with the regulations, being a company firmly committed to privacy.

- The AEPD has unjustifiably deviated from its own criteria.

In light of all the actions taken by the Spanish Data Protection Agency in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: On May 26, 2022, in connection with the analysis of the complaint filed by the complainant against OCCIDENT, this Agency confirms that the Cookie Policy of

<https://www.atares.es/cookies.html> includes the following Google Analytics cookies: `_ga`, `_gid`. (page 17 of the file).

On that same date, the following action was taken: acceptance of the cookies from the website www.atares.es through the Chrome browser. The image included in the file shows that the cookies `_ga`, `_gid` have been installed (page 29 of the file).

SECOND: On June 30, 2022, in response to the transfer of the complaint, OCCIDENT acknowledges that it has introduced the code for the Google Analytics tool on its website: "...Specifically, by email from

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On February 23, 2022, the Data Protection Delegate signing this document shared the situation regarding Google Analytics with the Company's Innovation Department in order to assess the advisability of discontinuing the use of these services (page 31 of the file).

THIRD: On September 2, 2020, the plenary of the European Data Protection Committee decided to create a working group (hereinafter, working group TF101) to ensure a coherent approach among European data authorities regarding the management of the 101 complaints from NOYB related to the use of Google Analytics and potential data transfers to the U.S., in the context of the CJEU ruling in Schrems II.

FOURTH: In the document dated April 9, 2021, sent by GOOGLE LLC to the Austrian data protection authority, which shares it with the other authorities through the TF101 working group regarding NOYB complaints in the context of the CJEU ruling in Schrems II, the following information and statements are included (from its unofficial translation from English):

(...)

FIFTH: In the model of the Adhesion Contract for GOOGLE services (pages 145 and following of the file), titled "Terms of Data Processing for Google Ads"

(<https://privacy.google.com/businesses/processorterms/>), in its version of September 21, 2022, it stated that (unofficial translation):

"Terms of Data Processing for Google Ads

Google and the counterparty accepting these Terms (the "Client") have entered into a contract for the provision of Processing Services (with its specific amendments, the "Contract").

These Terms of Data Processing for Google Ads (the "Data Processing Terms") are entered into by Google and the Client and complement the Contract.

[...]

If you accept these Data Processing Terms on behalf of the Client, you warrant that a) you have full legal authority for these Data Processing Terms to be binding on the Client, b) you have read and understand these Data Processing Terms, and c) you accept them on behalf of the Client. If you do not have the legal authority for these Data Processing Terms to be binding on the Client, do not accept them.

Introduction

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These Data Processing Terms reflect the agreement between the parties regarding the terms governing the processing of certain data in relation to European Data Protection Legislation and certain Non-European Data Protection Legislation.

Definitions and interpretation

[...]

"Google Entity" refers to Google LLC (formerly known as Google Inc.), Google Ireland Limited, or any other entity that, directly or indirectly, controls Google LLC, is controlled by Google LLC, or is under the same control as Google LLC.

"Google": refers to the Google Entity that is a party to the Contract.

"European Data Protection Legislation" refers, as applicable, to a) the GDPR and/or b) the FDPA of Switzerland.

[...]

"SCCs" refers to the Client's Standard Contractual Clauses and/or the Standard Contractual Clauses (Processor to Processor, Google Exporter), as applicable.

[...]

“SCCs (Processor to Processor, Google Exporter)” refers to the terms included in business.safety.google/adsprocesso.terms/sccs/p2p-intra-group.

[...]

“Sub-Processors” refers to third parties authorized under these Data Processing Terms to have logical access to the Client's Personal Data and process it for the purpose of providing part of the Processing Services and any related technical assistance.

[...]

5. Data Processing

5.1 Roles and compliance; authorization.

5.1.1 Responsibilities of the Data Processor and the Data Controller.

The parties acknowledge and agree to the following:

(a) Appendix 1 describes the issue and details of the processing of the Client's Personal Data.

(b) Google is a processor of the Client's personal data;

(c) The Client is a data controller or a processor, as applicable, of the Client's Personal Data; and

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(d) Each party shall fulfill its obligations under the Applicable Data Protection Legislation regarding the processing of the Client's Personal Data.

[...]

5.2. Client Instructions. By subscribing to these Data Processing Terms, the Client instructs Google to process the Client's Personal Data solely in accordance with applicable law: a) to provide the Services of the Data Processor and any related technical assistance, b) as specified in more detail through the Client's use of the Services of the Data Processor (including the configuration and other features of the Services of the Data Processor) and any related technical assistance, c) as documented through the Agreement (including these Data Processing Terms), and d) as documented in more detail in other written instructions provided by the Client and acknowledged by Google as constitutive instructions for the purposes of these Data Processing Terms (collectively, the “Instructions”).

5.3 Compliance with Instructions by Google. Google shall comply with the Instructions unless prohibited by Applicable Laws or such Applicable Laws require different processing.

[...]

10. Data Transfers

10.1 Data Storage and Processing Facilities. In accordance with this section 10 (Data Transfers), Google may process the Client's Personal Data in any country where Google or any of its Sub-processors has facilities.

10.2 Restricted European Transfers. The parties acknowledge that European Data Protection Legislation does not require SCCs or an Alternative Transfer Solution to process the Client's Personal Data in an Adequate Country or to transfer it to such a country. If the Client's Personal Data is transferred to any other country and such transfers are subject to European Data Protection Legislation (“Restricted European Transfers”), then:

If Google adopts an Alternative Transfer Solution for any Restricted European Transfer, Google will inform the Client of the relevant solution and ensure that such Restricted European Transfers are carried out in accordance with such Solution and/or If Google has not adopted or has informed the Client that it will no longer adopt any Alternative Transfer Solution for any Restricted European Transfer, then:

If Google's address is in an Adequate Country:

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The SCCs of the Data Processor shall apply to the Data Processor, Google Exporter) with respect to all Restricted European Transfers from Google to the Sub-processors.

(B) Additionally, if the Client's address is not in an Adequate Country, the SCCs (Data Processor to Data Controller) shall apply with respect to the Restricted European Transfers between Google and the Client, regardless of whether the Client is a controller and/or a processor or

(ii) If Google's address is not in an Adequate Country, the SCCs of the Data Controller to the Data Processor and/or the SCCs (Data Processor to Data Processor) shall apply, depending on whether the Client is a data controller and/or a data processor, with respect to the Restricted European Transfers between the Client and Google.

10.3 Complementary Measures and Information. Google will provide the Client with relevant information regarding Restricted European Transfers, including information on complementary measures to protect the Client's Personal Data, as described in section 7.5.1 (Security Documentation Reviews), in Appendix 2 (Security Measures), and in other materials related to the nature of the Services of the Data Processor and the processing of the Client's Personal Data (for example, help center articles).

10.4 Termination. If the Client concludes, based on the use it makes or intends to make of the Services of the Data Processor, that the Alternative Transfer Solution and/or the SCCs, as applicable, do not provide adequate protection for the Client's Personal Data, the Client may immediately terminate the Agreement for convenience by providing written notice to Google.

10.5 Data Center Information. Information about the locations of Google's data centers is available at www.google.com/about/datacenters/locations/.

11. Sub-processors of Personal Data.

11.1 Consent for Engaging a Sub-processor. The Client specifically authorizes the engagement as Sub-processors of the entities listed, as of the Effective Date of the Terms, at the URL specified in section 11.2 (Information about Sub-processors). Furthermore, and without prejudice to what is stipulated in section 11.4 (Opportunity to Object to Changes of the Sub-processor), the Client generally authorizes the engagement of any other third party as a Sub-processor ("New Sub-processors").

[...]" (the underlining is ours).

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SIXTH: In the description of Google Analytics, located at the URLs

<https://developers.google.com/analytics/devguides/collection/analyticsjs/field-reference>

and

<https://developers.google.com/analytics/devguides/collection/gajs/cookie-usage>

it states, among other information, that the cookies `_ga` and `_gid` are used to distinguish users and that the parameter "sr" referred to screen resolution (page 136 and following of the file).

SEVENTH: According to the response to question 4 (ii) of the document dated April 9, 2021 from GOOGLE LLC in the file, the owner of the website that has implemented the Google Analytics code on that website can choose from multiple retention periods ranging from 2 months to 50 months from the time the data was collected.

EIGHTH: According to the diligence dated September 27, 2024 in the file, on January 18, 2021, at the URL

<https://policies.google.com/terms/information-requests?hl=en-US> it stated (unofficial translation, original in English):

"[...]"

Requests from U.S. government agencies in cases involving national security

In investigations related to national security, the U.S. government may use a National Security Letter (NSL) or one of the authorizations granted under the Foreign Intelligence Surveillance Act (FISA) to

compel Google to provide user information.

An NSL does not require judicial authorization and can only be used to compel us to provide limited subscriber information.

FISA orders and authorizations can be used to compel electronic surveillance and the disclosure of stored data, including the content of services such as Gmail, Drive, and Photos.”

[...]” (unofficial translation, original in English)

NINTH: According to the diligence dated September 27, 2024 in the file, on January 26, 2022, at the URL

<https://support.google.com/analytics/answer/7686480> it stated (unofficial translation, original in English):

“[...]

Basics about personally identifiable information in Google’s contracts and policies.

In many contracts, terms of service, and policies of Google’s advertising and measurement products, reference is made to "personally identifiable information" (PII).

This is a categorization of data different from what the General Data Protection Regulation (GDPR) considers "personal data."

Please note that, although Google does not identify certain data as personally identifiable information, the GDPR may do so, or that such data may be considered personal information under the California Consumer Privacy Act (CCPA), and may be subject to those laws.

[...]

Google considers "personally identifiable information" to be information that can be used alone to identify or locate a person accurately, or to contact them directly. Among other data, it includes the following:

- Email addresses
- Postal addresses
- Phone numbers
- Precise locations (e.g., GPS coordinates, except in the cases mentioned below)
- Full names (first and last name) or usernames.

[...]

Among others, Google does not consider the following data to be personally identifiable information:

- Pseudonymous cookie IDs
- Pseudonymous advertising IDs
- IP addresses
- Other pseudonymous end-user identifiers

For example, if an IP address is sent with an ad request (something that happens with almost all ad requests as a result of Internet protocols), that submission will not violate any prohibition related to sending personally identifiable information to Google.

Please note that, although Google does not identify certain data as personally identifiable information, the GDPR, the CCPA, or other privacy laws may consider them personal data or personal information.

[...]”

TENTH: According to the diligence dated September 27, 2024 in the file, at the URL

<https://transparencyreport.google.com/user-data/us-national-security?hl=en> Google has been publishing since 2009 the number of user information requests in the U.S. related to FISA (Foreign Intelligence Surveillance Act) and NSL (National Security Letters).

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and

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guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Considering the nature of the facts that have led to these proceedings and the concurrent circumstances, this warning procedure is being conducted in accordance with the provisions of Article 64.3 of the LOPDGDD.

II

Preliminary Issues

Article 4.2 of the GDPR defines "processing" as:

"any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction."

For its part, Article 4.7 of the GDPR defines the "data controller" or "controller" as:

"the natural or legal person, public authority, service or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States."

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since OCCIDENT collects and processes, through the Google Analytics service, among others, the following personal data of natural persons: unique user identifiers (_ga and _gid), the IP address, as well as other data associated with the browser and the browsing itself, among other processing activities.

OCCIDENT carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 44 of the GDPR regulates the transfer of personal data to third countries.

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III

Response to the Allegations

Next, a response is provided to the allegations presented by the entity being complained against, in the order in which they are formulated in their writing:

"FIRST.- THE PRIOR INVESTIGATION ACTIONS THAT THE AEPD RELIES ON TO ADOPT THE INITIATION AGREEMENT HAVE EXPIRED"

In response to this allegation, it should be noted that, in this case, after the admission of the complaint for processing, no prior investigation actions have been carried out, so the twelve-month duration of such actions, which Article 67.2 of the LOPDGDD established as a time limit, does not apply, according to the wording of that article in force at the time the complaint was admitted for processing. The time limit established in Article 67.2 of the LOPDGDD is the maximum period within which the initiation agreement must be issued, only in the event that prior investigation actions have been agreed upon, and this time limit cannot be applied, as OCCIDENT intends, even if such actions have not been agreed upon.

After the admission of the complaint for processing, and not considering it necessary to carry out prior investigation actions, the only time limit that we must apply is the three-year statute of limitations

provided for in Article 72.1.l) of the LOPDGDD for very serious infringements, as was substantiated in the initiation agreement. Considering the absence of an adequacy decision with the U.S. (following the CJEU ruling C-311/18) between July 16, 2020, and July 10, 2023, the facts referred to in the complaint persisted until at least this last date, which would be the start date of the statute of limitations, so that, as of the start date of the present procedure, the infringement had not expired.

Regarding the incorporation of the document "Google Transparency Report, relating to statistics of access requests by U.S. intelligence services," this was not produced within the framework of prior investigation actions. It was simply incorporated into the file as a publicly available document, which does not equate to carrying out prior investigation actions.

On the other hand, the Judgment of the National Court cited by OCCIDENT refers to the case in which, after an agreement to open prior investigation actions has been issued, and the time limit established in the LOPDGDD has elapsed, the expiration of the prior investigation actions has not been declared, because when this circumstance occurs, the expired actions must be archived and, if applicable, the opening of new actions must be agreed upon. As explained previously, in the complaint that gave rise to the present procedure, the opening of prior investigation actions was not agreed upon, so the grounds of the Judgment of the National Court are not applicable in this case.

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For all the above reasons, the present allegation is dismissed.

"SECOND.- THE PROCEDURE HAS FORMAL DEFECTS THAT HAVE CAUSED A LACK OF DEFENSE FOR THE COMPANY AND, THEREFORE, IT MUST BE ARCHIVED"

"1. The AEPD did not forward the complaint to the company"

As a preliminary matter, it should be noted that this Agency did forward the complaint to OCCIDENT. Although the document submitted by the complainant was not included in that forwarding, the terms of the complaint were outlined in the notification sent to OCCIDENT.

Specifically, regarding the subject of this procedure, the forwarding of the complaint stated the following concerning the "Facts that motivate the complaint":

"Furthermore, it states that despite the fact that the Court of Justice of the European Union has invalidated the decision on the 'EU-US Privacy Shield', personal data would be collected and transferred to the United States through the services of Google Analytics and Zendesk."

This allowed OCCIDENT to formulate a reasoned response in its "second" statement regarding the use of the Google Analytics tool in response to the forwarding of the complaint.

"1.1 The description of the facts included in the request is very limited and hinders the company's action"

First of all, it should be clarified that the forwarding of the complaint to the data controller under Article 65.4 of the LOPDGDD is not mandatory but rather optional; "may forward," the article literally states. Secondly, it should be indicated that this is not a requirement as OCCIDENT states, but rather a request for information in which the reason for the complaint is clearly indicated, as mentioned in the preceding paragraphs.

"1.2 The initiation agreement also does not forward the complaint"

It is not appropriate for documentation from the file to be attached to the initiation agreement. To access the documentation contained in the file, Article 53 of the LPACAP, "Rights of the interested party in the administrative procedure," provides in its section 1.a): "They shall also have the right to access and obtain copies of the documents contained in the aforementioned procedures." However, once the sanctioning procedure was initiated, OCCIDENT did not exercise its right to request a complete copy of the file, nor of the complaint that motivated the initiation of the present procedure.

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"2. The initiation agreement incorporates documents into the file that cause defenselessness due to not being connected with the specific facts referred to in the claim and for being either very prior or very subsequent in time to the specific facts described in the claim (which are the subject of this procedure)."

The documents incorporated into the file in the initiation agreement of the present procedure constitute evidence of the technical operation (Document regarding Google Analytics and the use of cookies in Google Analytics) and of the contractual conditions regarding data protection (Google Ads Data Processing Terms and Standard Contractual Clauses) under which the Google Analytics service is developed, a tool through which OCCIDENT, as the data controller, provides, through the data processor, Google, the international data transfer referred to by the claimant in their claim.

Furthermore, Google's statement dated April 9, 2021, clarifies technical and legal aspects related to the operation of Google Analytics, as well as the information requests made by U.S. intelligence services. Finally, in the "Google Transparency Report," statistics on access requests by U.S. intelligence services are published, which corroborates Google's subjection to Section 702 of FISA, the reason for which the CJEU in the judgment in case C-311/18 (Schrems II) declared the Commission's Implementing Decision (EU) 2016/1250 of July 12, 2016, regarding the adequacy of the protection conferred by the EU-U.S. Privacy Shield invalid.

Regarding the versions of the dates of the documents incorporated into the file, the statements made by Google in the document dated April 9, 2021, would remain valid as of April 13, 2022, in all that is cited in the initiation agreement. Regarding the Google Ads Data Processing Terms, the version in force at the date of filing the claim (April 13, 2022) was the one approved by Google on August 16, 2020, without OCCIDENT citing another version of said document that could be applicable, the subsequent version being dated January 1, 2023. For its part, the Standard Contractual Clauses of September 27, 2021, were the version in force at the time the events that gave rise to the Claim occurred, the next version being dated September 21, 2022.

For all the above, all these documents do reflect the operation of the Google Analytics tool at the time the events that gave rise to the claim occurred.

Regarding the statements made by OCCIDENT that "this is not a procedure initiated against Google for the alleged (and unproven) generalized international transfer of personal data of users of websites hosted in Spain," the international data transfers through the Google Analytics tool have been accredited according to Google's data processing terms and its own statement dated April 9, 2021, reproduced in the Established Facts.

Indeed, this is not a procedure initiated against Google, which, as a data processor, cannot be considered responsible for the processing carried out on behalf of OCCIDENT, which is the entity that decided the purposes and means of the processing.

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processing, as established in Article 4.7) of the GDPR.

Thus, regarding the CJEU ruling of December 5, 2023, in case C-683/21, it states that "84 Since, as indicated in paragraph 36 of this judgment, a data controller is responsible not only for all personal data processing that it carries out itself but also for processing carried out on its behalf, an administrative fine may be imposed on that controller under Article 83 of the GDPR in a situation where personal data is subject to unlawful processing and where it is not the controller, but a processor it has engaged, who has carried out the processing on its behalf."

"3. The AEPD has not respected the functions of the data protection officer of the company"

From the allegations of OCCIDENT, it is verified that there has been no violation of the regulations governing both the transfer of the complaint and the initiation of the present procedure. The transfer was notified to OCCIDENT, which sent a response signed by its Data Protection Officer to this Agency. Regarding the acts of the present procedure, specifically, the initiation agreement was duly notified to

the entity that was considered the data controller at the beginning of the procedure. In no case does the legal regime established in the GDPR or in the administrative sanctioning procedure regulated in the LPACAP provide that notifications of actions arising from the initiation of a sanctioning procedure must be made to a party other than the data controller or its representative, therefore, it was not appropriate for the notifications to be directed to the Data Protection Officer.

Consequently, the assertion made by OCCIDENT ("the AEPD knew the contact details of this data protection officer and, therefore, could notify this data protection officer of any administrative acts arising from this file") has no legal basis.

"4. Conclusion: violation of the right to defense of OCCIDENT in the present procedure"

Finally, to all the reasoning of the allegation "SECOND," in which OCCIDENT attempts to substantiate that the "procedure suffers from formal defects that have caused defenselessness," the doctrine established by the Constitutional Court in its judgment No. 210/1999, of November 29, must be understood as applicable, which states that constitutionally relevant defenselessness is the situation in which, following the infringement of a procedural norm, one of the parties is prevented from exercising the right to defense by eliminating or limiting its power, either to assert rights and interests for them to be recognized, or to dialectically respond to opposing positions in the exercise of the principle of contracting.

An essential characteristic of defenselessness is that it must be material in nature and not merely formal, that is, it is not sufficient for there to be a defect or procedural infringement; there must have been an effective and real

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right to defense (judgment of the Constitutional Court No. 90/1988, of May 13).

Well, OCCIDENT is unable to present a single defect or procedural infringement, not even a formal one, that has effectively limited its right to defense.

For all the above reasons, this allegation is dismissed.

"THIRD.- IT IS NOT APPROPRIATE TO IMPOSE A WARNING ON THE COMPANY: THE COMPANY HAS DILIGENTLY FULFILLED ITS OBLIGATIONS AND NO NON-COMPLIANCE HAS BEEN ESTABLISHED"

This section is broken down into the following subsections:

"1. The company has not transferred any data of the claimant to Google"

The processing of data of the claimant has been substantiated in accordance with the documentation provided along with the complaint (image of cookies installed upon acceptance), the evidence collected by this Agency (Cookie Policy), the statements and documents (terms of processing, standard contractual clauses, statistics on information requests, etc.) that the data processor (Google) has made available to the public, as well as the assertions and documentation provided by OCCIDENT.

The scheme of the infringing conduct is as follows:

- 1.- The claimant, as well as any user of the website www.atares.es, for which OCCIDENT was responsible, by accepting the "functional" cookies from Google (data processor), allowed the following Google Analytics cookies to be installed in their browser: `_ga` and `_gid`.
2. These cookies, as expressly stated by Google itself, serve the function of "distinguishing users." Google Analytics sends this information, along with other data described in Legal Basis IV, to the servers of Google LLC. Let us recall that Recital 30 of the GDPR states regarding cookie identifiers of natural persons or their devices: "they may leave traces which, particularly when combined with unique identifiers and other information received by the servers, can be used to create profiles of natural persons and identify them," thus they are considered personal data.
3. According to Google's response of April 9, 2021, all these "data collected through Google Analytics are stored and processed more extensively in the United States."
4. After the judgment of the CJEU in case C-311/18 (Schrems II), which declared the Commission's

Implementing Decision (EU) 2016/1250 of July 12, 2016, on the adequacy of the protection granted by the EU-U.S. Privacy Shield invalid, the international data transfers to the U.S. from the EU carried out by Google, in accordance with its “Advertising Data Processing Terms,”

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have their legal basis in the standard contractual clauses, regarding which the CJEU considered that, due to the contractual nature of these clauses, they could not be binding for the authorities of third countries, so that, at the time of the claim, international data transfers to the U.S. did not provide guarantees equivalent to those contemplated in the GDPR.

5. Google periodically publishes statistics on information requests from U.S. government agencies in cases involving national security, based on Section 702 of FISA, which led the CJEU to declare the Commission's Implementing Decision (EU) 2016/1250 of July 12, 2016, on the adequacy of the protection conferred by the EU-U.S. Privacy Shield invalid.

“2. The company has not transferred personal data to Google”

OCCIDENT refers to the anonymization of the IP as an element that must rule out that the transferred data has the character of personal data. However, although it is stated that this data is collected, the subsequent step of proving that the data is anonymized in the territory of the EU is not demonstrated.

Furthermore, regardless of the IP, there are in this case a series of data that can make the claiming party identifiable (distinguishable from other users), based on Google's own assertion that the cookies _ga and _gid are used to distinguish users, along with what is provided by Recital 30 of the GDPR, are sufficient arguments to understand that the mere possibility of making users of the OCCIDENT website identifiable implies that these are personal data, as reaffirmed by Recital 26 of the GDPR: “The principles of data protection must apply to all information relating to an identified or identifiable natural person. Pseudonymized personal data, which could be attributed to a natural person by the use of additional information, should be considered information about an identifiable natural person. To determine whether a natural person is identifiable, all means, such as singling out, that may reasonably be used by the data controller or any other person to identify the natural person directly or indirectly must be taken into account.”

Consequently, in accordance with what has been more broadly developed in Legal Basis IV, especially in its point 2, “On the qualification of the data subject to processing as personal data,” the data transferred by OCCIDENT through the tool provided by Google is considered personal data.

For all the above reasons, this allegation is dismissed.

“3. In any case, the AEPD has not analyzed whether, based on the circumstances of the case, a violation of the GDPR has occurred”

In this regard, it is noteworthy that, from OCCIDENT, there is reasoning about the sparsity of the motivation of the initiation agreement, in relation to a “general investigation carried out on Google in other countries,” when the entity being claimed neither

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has not even requested a copy of the documents in the file on which the initiation agreement of the

present procedure is based.

The investigation into the functioning of Google has been carried out by the AEPD itself. For this reason, the initiation agreement states that the documents from the prior investigation proceedings E/10531/2021 are incorporated, which, as we mentioned, OCCIDENT has not deemed appropriate to consult.

In the framework of TF-101 referred to in the Established Facts, a working group in which the data protection authorities of the EU Member States shared their views and information regarding the functioning of Google Analytics, the Austrian authority shared the document dated April 9, 2021, in which Google LLC makes a series of statements about the functioning of Google Analytics, which, along with other documents that Google makes available to the public, such as its "Terms of Data Processing Ads." and the report on statistics of information requests from U.S. government agencies, is considered sufficient basis to initiate the present sanctioning procedure. Again, it must be emphasized the lack of interest from OCCIDENT in knowing the content of the documentation in the file on which the present procedure is based.

All these elements of judgment have been applied to the specific case of the website www.antares.es of OCCIDENT, which has led to the following Established Facts, previously collected in this resolution:

1.- When the complainant visited the website www.antares.es on May 26, 2022, two "functional" cookies from Google were installed in their browser.

2.- The Cookie Policy of the website <https://www.antares.es/cookies.html> includes the following Google Analytics cookies: `_ga`, `_gid`.

3.- These cookies were installed without obtaining the complainant's consent authorizing the international transfer of their data to the U.S., prior warning of the risks that such transfer entails regarding their personal data related to browsing the website in question.

Consequently, the circumstances of the specific case have been appropriately analyzed.

"4. The company has acted at all times diligently and with a more than reasonable expectation of complying with the regulations."

The fact that the website is not operational does not exclude the requirement of liability for the actions committed by OCCIDENT for which the provisions of the GDPR were infringed.

OCCIDENT claims to have acted with "maximum diligence and proactive responsibility." However, the following considerations must be made regarding its assertions:

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(i) OCCIDENT has not acted diligently insofar as it has ignored the jurisprudence of the CJEU regarding international data transfers to the U.S. in case C-311/18 ("Schrems II"), as well as the subsequent decisions of the data protection authorities of the European Union that it references in its allegations (authorities from Austria and France), concerning the illegality of the use of Google Analytics, and, finally, the doubts expressed by its Data Protection Officer, so that, far from correcting the effects of its actions, it has maintained them over time.

(ii) While the use of the User ID functionality may increase the chances of identifying users by being able to associate their own identifiers with individual users to connect their behavior across different sessions and on various devices and platforms; the lack of use of this functionality does not prevent users of the website www.antares.es from being identifiable through the combination of unique identifiers with other elements, as reasoned in point 2 of the Legal Basis IV of this resolution. In this way, other data such as IP or information stored in cookies can commonly be used to identify a user, especially when combined with other similar types of information. This is illustrated in Recital 30 of the GDPR, according to which the assignment of online identifiers such as IP addresses or cookie identifiers to natural persons or their devices can "leave traces that, particularly when combined with unique identifiers and other information received by servers, can be used to create profiles of natural persons and identify them."

As an example, let us recall the functions attributed to the cookies `_ga` and `_gid`, as described in the

Established Facts. The cookie _ga records a unique identifier that is used to generate statistical data about how the visitor uses the website, and the cookie _gid records a unique identifier that is used to generate statistical data about how the visitor uses the website. The fact that Google has a plugin that users can install to prevent their data from being collected by Google Analytics does not exempt the data controller, OCCIDENT, from ensuring that the personal data that has been collected by Google Analytics is processed in accordance with the provisions of the GDPR.

“5. Occident, a company firmly committed to privacy”

Circumstances such as the "history of the company" or the "ongoing improvement process" do not undermine OCCIDENT's responsibility in the constitutive facts of the infringement.

Regarding the assertion that "the warning would be a disproportionate measure," OCCIDENT has not acted diligently in that it has expressly stated that it was aware of both the jurisprudence of the CJEU and the resolutions of other data protection authorities regarding the illegality of the use of Google Analytics, so that, far from correcting the effects of its actions, it has maintained them over time.

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There can be no talk of a lack of proportionality of the measure when, according to the circumstances present in this case, the imposition of a fine for the violation of Article 44 of the GDPR has not been proposed, only a warning.

“6. The AEPD has unjustifiably deviated from its own criteria”

In this allegation, OCCIDENT brings up a resolution from this Agency, specifically, the resolution of the closure of proceedings issued in the framework of file E/10529/2021 regarding the complaint filed against the Royal Spanish Academy (the “RAE”). The reason on which the closure of the complaint was based is as follows: “...no evidence has been found that currently substantiates the existence of an infringement within the jurisdiction of the Spanish Data Protection Agency.” (the underlining is ours) In the case of the OCCIDENT website, unlike what is stated in the previously transcribed paragraph of the resolution of file E/10529/2021, despite the Schrems II ruling, it maintained the use of Google Analytics on its website. Although this website may have ceased to be operational subsequently, this does not preclude the verification of non-compliance with the provisions regarding international data transfers under the GDPR, and more specifically, the doctrine established by the CJEU in the ruling of case C-311/18 “Schrems II.”

For all the above reasons, all allegations are dismissed.

IV

Transfers of personal data to third countries

Article 44 “Transfers of personal data to third countries or international organizations” of the GDPR states:

“Personal data that are subject to processing or are to be processed after their transfer to a third country or international organization may only be transferred if, subject to the other provisions of this Regulation, the controller and the processor comply with the conditions laid down in this chapter, including those relating to further transfers of personal data from the third country or international organization to another third country or another international organization. All provisions of this chapter shall apply in order to ensure that the level of protection of natural persons guaranteed by this Regulation is not undermined.”

Chapter V of the Regulation provides various instruments to ensure a level of protection that is substantially equivalent to that guaranteed in the European Union, in accordance with Article 44 of the Regulation:

- adequacy decisions (Article 45);
- appropriate safeguards (Article 46);

In the absence of an equivalent level of protection, exceptions are established for specific situations (Article 49).

1.

On the processing of data and the responsibility for processing.

In the document dated April 9, 2021, sent by Google LLC to the Austrian data protection authority, which it shared with the other authorities within the framework of the TF101 working group, it is indicated that Google Analytics operates by including a block of Javascript code on the pages of a website. When a user visits a webpage, this Javascript code refers to a Javascript code that has been previously downloaded to the user's device, which then executes the tracking operation for Google Analytics. The tracking operation sends data about the requested page through various means and sends this information to the Analytics server via a series of parameters attached to a request for a one-pixel GIF image sent to the domain google-analytics.com. The data is then processed more extensively and ends up in the reports of the website owner, in this case, OCCIDENT. The data that Google Analytics collects on behalf of the website owner comes from the following sources:

i.
The user's HTTP request.
An HTTP request contains details such as the browser and the computer making the request, such as the hostname, browser type, referer, and language.

ii.
Browser and system information.

iii.
First-party cookies.

Website administrators who integrate the Google Analytics service can send instructions to Google for processing the data collected through Google Analytics. The website administrator can apply different settings, for example, regarding the data retention period. The Google Analytics function also allows website administrators to monitor and maintain the stability of their website, for example, keeping them informed of certain events such as a spike in audience or the fact that there is no traffic at all. Google Analytics also allows website administrators to measure and optimize the effectiveness of advertising campaigns conducted using other Google tools.

Therefore, Google Analytics collects the user's HTTP query and information about the user's browser and operating system, among other elements. An HTTP request, for any page, contains details of the browser and device making the query, such as the domain name and browser information, its type, referer, and language. Google Analytics stores and reads cookies in the user's browser to evaluate the user's session and other information about the query.

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Regarding these data transfers, the contract related to the Google Analytics function ("Google Analytics Terms of Service") includes an appendix titled "Google Ads Data Processing Terms" (previously known as "Google Ads Data Processing Conditions"). This appendix contains standard contractual clauses governing the transfer of personal data to the United States of America under the Google Analytics service. Additionally, Google has implemented further legal, organizational, and technical measures to regulate data transfers under the Google Analytics service. In accordance with point 10 of the "Google Ads Data Processing Terms," the data controller has agreed that Google may store and process the customer's personal data (in this case, personal data of the claimant) in any country where Google or any of its data processors maintain facilities. When this information is collected, it is transmitted to Google Analytics servers.

Returning to the document sent by Google LLC dated April 9, 2021, in the last paragraph of the response to question 8, Google states that all data collected through Google Analytics is hosted in the United States. Therefore, the data collected on the website "https://www.antares.es" through Google Analytics is transferred to the United States. Such data transfer requires a legal basis in accordance with Article 44 and subsequent articles of the GDPR. All these elements show that, upon deciding to implement the Google Analytics function on its website, OCCIDENT, which manages the website

"<https://www.atares.es>," determined the means and purposes of the collection and processing of the data obtained as a result of the integration of Google Analytics into its website and must be considered the data controller in the sense of Article 4.7 of the GDPR.

1. On the qualification of the data subject to processing as personal data

It can be asserted that the data collected under the Google Analytics function and transferred to the United States of America constitutes personal data. Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific factors relating to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

It should be noted that online identifiers, such as IP addresses or information stored in cookies, can commonly be used to identify a user, especially when combined with other similar types of information. This is illustrated in Recital 30 of the GDPR, which states that the assignment of online identifiers such as IP addresses and cookie identifiers to natural persons or their devices can "leave traces that, particularly when combined...

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with unique identifiers and other information received by the servers, can be used to create profiles of individuals and identify them." In the particular case where the data controller claims not to have the ability to identify the user through the use (alone or combined with other data points) of such identifiers, it would be expected to disclose the specific means deployed to ensure the anonymity of the collected identifiers. Without such details, they cannot be considered anonymous.

Therefore, it is necessary to examine to what extent the implementation of Google Analytics on a website allows the website administrator and Google to identify an interested party (a visitor to the website in question).

When the claimant visited the website <https://www.atares.es>, the following data (via JavaScript code) was transmitted from the claimant's browser to the servers of Google LLC:

- Cookies `_ga` and `_gid`
- URL of the visited webpage (parameter `dl`) and title of the visited webpage (parameter `dt`)
- IP
- `sr` (screen resolution), among other parameters.
- Data about the browser and operating system:
- Unique identifier that identifies the website operator

It should be noted that the CJEU has already stated that IP addresses are personal data (see case C-597-19, paragraph 102 and C-582/14, paragraph 49). The IP address does not lose its nature as personal data simply because the means of identification reside with third parties. Furthermore, the case in question is very different, as the IP address can be combined with other elements, as will be described below.

Regarding unique identifiers, when a user visits the website <https://www.atares.es>, its cookie policy acknowledges the use of Google Analytics, which involves sending the values of the "`_ga`" and "`_gid`" cookies to Google LLC, as stated in the reference to Google Analytics cookies (page 134 of the file).

According to the description of Google Analytics available at the URLs:

"<https://developers.google.com/analytics/devguides/collection/analyticsjs/field-reference>"

and "<https://developers.google.com/analytics/devguides/collection/gajs/cookie-usage>", the cookies `_ga` and `_gid` are used to distinguish users and the parameter "`sr`" refers to screen resolution.

Visitor identifiers are unique identifiers intended to differentiate individuals (where such differentiation was not possible before), and make individuals identifiable. These identifiers can also be combined with other information, such as the address of the visited website, metadata related to the browser and operating system, the time and data related to the website visit, and the IP address. This combination of information further differentiates individuals.

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For this reason, when several elements are combined, they can allow for the individual identification of visitors to the website "https://www.atares.es," where Google Analytics is implemented. It is not necessary to know the name or the (physical) address of the visitor, as, according to Recital 26 of the GDPR, such qualification of individuals is sufficient for the visitor to be identifiable. If the opposite were decided, the scope of the right to data protection, guaranteed by Article 8 of the Charter of Fundamental Rights of the European Union, would be undermined, as it would allow companies to specifically select individuals along with personal information (for example, when visiting a specific website) while simultaneously denying them any right to protection against such singling out. Such a restrictive opinion that would undermine the level of protection for individuals is also not in line with the jurisprudence of the Court of Justice of the European Union (hereinafter, CJEU), which has repeatedly ruled that the scope of the GDPR must be understood very broadly (see, for example, judgment C-439/19, paragraph 61).

Google LLC states that it has "no intention" of using online identifiers to identify the claimant (or other individuals), as mentioned in the last paragraph of the response to question 13 of the document dated April 9, 2021, and that in fact "they do not do this." It should be noted that Article 4, paragraph 1, of the GDPR does not require an entity to have a specific intention to identify a person. According to the clear wording of Article 4, paragraph 1, of the GDPR, the term "personal data" is fulfilled when an entity can (has the possibility) to do so.

Even a more restrictive interpretation of Article 4, paragraph 1, of the GDPR, which in any case would be contrary to the jurisprudence of the CJEU, would understand the definition of "personal data" as applicable to the exposed data. In the event that any visitor to the website https://www.atares.es had logged into a Google account at the time of their visit, as can be seen in the statement from Google LLC dated April 9, 2021, the implementation of Google Analytics on a website allows Google to receive information that a specific user of the Google account has visited that website.

In the context of the use of Google Analytics, and depending on some settings in the Google user account configuration (see response to question 9 of the Google document dated April 9, 2021), it allows Google to receive information that a user logged into a Google account has visited a particular website. Therefore, personal data related to this account is collected. For all these reasons, it must be considered that the data in question are personal data in the sense of Article 4.1 of the GDPR.

2. On the breach of the obligation to regulate the transfer of personal data outside the European Union In this case, it must be verified whether the export of personal data to the United States of America occurred as the claimant indicates, in the terms that...

establishes Article 44 of the GDPR, and, in the event that it has occurred, whether the export was carried out with an adequate level of protection in accordance with a decision of adequacy under Article 45 of the GDPR, or, failing that, whether any of the safeguards under Article 46 of the GDPR were adopted.

□

Decisions of adequacy

In its judgment in case C-311/18 ("Schrems II"), dated July 16, 2020, the CJEU invalidated the Implementing Decision (EU) 2016/1250 of the Commission, dated July 12, 2016, in accordance with Directive 95/46/EC of the European Parliament and of the Council, regarding the adequacy of the protection provided by the "EU-US Privacy Shield," without maintaining its effects as of the date of the events in question.

In the absence of an applicable adequacy decision for the present case, the data transfer in question cannot be based on the provisions of Article 45.3 of the GDPR.



Appropriate safeguards: Standard data protection clauses

Article 46, "Transfers subject to adequate safeguards," of the GDPR, establishes in its paragraph 1 that "In the absence of a decision pursuant to Article 45(3), the controller or processor may only transfer personal data to a third country or international organization if it has provided adequate safeguards and on condition that the data subjects have enforceable rights and effective legal remedies."

Article 46, paragraph 2, of the GDPR provides that "The adequate safeguards referred to in paragraph 1 may be provided, without requiring any express authorization from a supervisory authority, by: (...)

c) standard data protection clauses adopted by the Commission in accordance with the examination procedure referred to in Article 93(2).

(...)."

Google's standard contractual clauses for the transfer of personal data to the United States, updated on September 27, 2021, under the name "Google Ads & Measurement: Standard Contractual Clauses (Module 3: Processor-to-Processor)," which could be translated as: "Google Ads Data Processing Terms: Standard Contractual Clauses, Processor-to-Processor Standard Contractual Clauses" (hereinafter, SCC). These clauses comply with those published by the European Commission in Decision 2010/87/EU.

In this context, it is noteworthy that standard contractual clauses are a transfer instrument in the sense of Chapter V of the Regulation and were not challenged as such by the CJEU in its judgment of July 16, 2020 (C-311/18). However, the CJEU considered that the contractual nature of these clauses implied that they could not be binding on the authorities of third countries. In particular, the CJEU stated that: "...Therefore, while there are situations in which, depending on the legislation and practices in force in the third country in question, the recipient of such a transfer is in a position to guarantee the

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necessary protection of data solely on the basis of standard contractual clauses for data protection, there are other situations in which the content of such standard clauses may not constitute a sufficient means to ensure, in practice, the effective protection of personal data transferred to the third country in question. This is particularly the case when the legislation of that third country allows its public authorities to interfere with the rights of the data subjects to whom the data relates" (C-311/18, paragraph 126, emphasis added).

No further analysis of the legal situation of the United States is necessary, as the CJEU has already provided it in its aforementioned judgment. Indeed, the CJEU found that regulatory surveillance programs such as Section 702 of FISA and E.O. 12333 in conjunction with PPD-28 do not meet the minimum requirements established by Union law regarding the principle of proportionality, so that surveillance programs based on these provisions cannot be considered limited to what is strictly necessary (C-311/18, paragraph 184). Furthermore, the CJEU found that the legal framework in question did not confer on data subjects rights that are actionable before the courts against U.S. authorities, from which it follows that these individuals do not have the right to effective judicial protection (C-311/18, paragraph 192).

The CJEU's analysis is relevant in the present case, as Google LLC (as the importer of data to the U.S.) must be classified as a provider of electronic communications services within the meaning of subsection (b) of point 4 of Section 1881 of Title 50 of the United States Code and, therefore, is subject to surveillance by U.S. intelligence services in accordance with subsection (a) of Section 1881 of Title 50 of the United States Code ("FISA 702"). Therefore, Google LLC is obligated to provide personal data to the U.S. government when requested in accordance with subsection (a) of Section 1881 of Title 50 of the United States Code (FISA 702).

As can be seen in Google's Transparency Report, Google LLC is regularly subject to such access requests from U.S. intelligence services. The report can be accessed at:

<https://transparencyreport.google.com/user-data/us-national-security?hl=en>

The CJEU stated, on the one hand, that the EU-U.S. adequacy decision was invalid due to the access possibilities of U.S. intelligence services and, on the other hand, concluded that the use of standard contractual clauses cannot, on its own, guarantee a level of protection as required by Article 44 of the GDPR, since the guarantees they offer are not fulfilled when such access requests are made. In fact, the CJEU concluded the following:

"It follows that the standard contractual clauses for data protection adopted by the Commission on the basis of Article 46(2)(c) of the GDPR are intended solely to provide contractual guarantees that apply uniformly across all third countries to the controllers and processors established in the European Union and, consequently, regardless of the level of protection guaranteed in each third country. To the extent that these standard contractual clauses for data protection cannot, by their very nature, provide guarantees beyond a contractual obligation to ensure compliance with..."

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the level of protection required by Union Law may require, depending on the prevailing situation in a specific third country, the adoption of supplementary measures by the data controller to ensure compliance with that level of protection" (C-311/18, paragraph 133).

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General observations on supplementary measures

In its Recommendations 01/2020, dated June 18, 2021, (which can be consulted at the website https://edpb.europa.eu/system/files/2021-06/edpb_recommendations_202001vo.2.0_supplementarymeasurestransferstools_en.pdf, although the transcripts included in this document refer to its translation into Spanish) the European Data Protection Board (EDPB) clarified that when the assessment of the legislation or current practices of the third country may affect the effectiveness of the adequate safeguards of the transfer instruments on which the exporter relies, in the context of its specific transfer, as is the case here following the assessment by the CJEU, the exporter must suspend the transfer or implement appropriate supplementary measures. The EDPB notes in this regard that "Any supplementary measure can only be considered effective in the sense of the CJEU ruling 'Schrems II' to the extent that it addresses the specific deficiencies identified in its assessment of the legal situation in the third country. If, ultimately, it cannot guarantee a level of protection that is essentially equivalent, personal data must not be transferred." (see Recommendations 01/2020, paragraph 75).

The measures to complement the standard data protection clauses can be classified into three categories: contractual, technical, or organizational (see Recommendations 01/2020, paragraph 74). Regarding contractual measures, the EDPB stated that: "In some situations, these measures may complement and reinforce the guarantees that the transfer instrument and the relevant law of the third country can provide when, considering the circumstances of the transfer, they do not meet all the necessary conditions to ensure a level of protection essentially equivalent to that guaranteed in the Union. Given the nature of contractual measures, which generally cannot bind the authorities of that third country when they are not part of the contract, these must be combined with other technical and organizational measures to provide the required level of data protection (...)." (see Recommendations 01/2020, paragraph 99, emphasis added).

As for organizational measures, the EDPB highlighted that: "... Selecting and applying one or more of these measures will not necessarily and systematically guarantee that your transfer meets the essential equivalence standard required by Union Law. Depending on the specific circumstances of the transfer and the assessment made regarding the law of the third country, organizational measures will be needed to complement contractual or technical measures, in order to ensure a level of protection of personal data that is essentially equivalent to that guaranteed in the Union" (see Recommendations 01/2020, paragraph 128, emphasis added).

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Regarding technical measures, the EDPB stated that “...These measures will be particularly necessary when the legislation of that country imposes obligations on data importers that are contrary to the guarantees of Article 46 of the GDPR and may, in particular, affect the contractual guarantee of an essentially equivalent level of protection against access by public authorities of that third country to such data” (see Recommendations 01/2020, paragraph 77). It added that “The measures listed below aim to ensure that access by public authorities of third countries to the transferred data does not affect the effectiveness of the appropriate safeguards contained in the transfer instruments of Article 46 of the GDPR. These measures apply even if access by public authorities complies with the law of the importing country, when such access goes beyond what is necessary and proportionate in a democratic society. These measures aim to prevent the possible breach of access by preventing authorities from identifying data subjects, inferring information about them, individualizing them in another context, or associating the transferred data with other datasets they may hold, which may contain, among other data, online identifiers provided by the devices, applications, tools, and protocols used by the data subjects in other contexts.” (see Recommendations 01/2020, paragraph 79, emphasis added).

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Complementary measures implemented by Google LLC

Google LLC, as the recipient of user data from its Google Analytics services, adopted contractual, organizational, and technical measures to complement the SCC. In the document dated April 9, 2021, sent by Google LLC to the Austrian data protection authority, which it shared with the other authorities within the framework of the TF101 Working Group, Google LLC described the measures taken in detail.

Considering the considerations of the CJEU and the EDPB, it must now be verified whether the complementary measures adopted by Google LLC were effective, meaning that they address the specific issue of the access possibilities of U.S. intelligence services.

Regarding the “legal and organizational measures” adopted, it should be noted that neither the notification of users, even if such notification is admissible, nor the publication of a transparency report or a “public policy on the handling of governmental requests” actually prevent or reduce the access possibilities of U.S. intelligence services. Furthermore, it is unclear how the “careful review of each request” by Google LLC regarding its admissibility is effective as a complementary measure, considering that, according to the CJEU, admissible (legal) requests from U.S. intelligence services do not comply with the requirements of European Data Protection legislation.

With respect to the “technical measures” adopted, it should be noted that it has not been clarified how the described measures, such as the protection of communications between Google services, the protection of data in transit between data centers, the protection of communications between users and websites, or “site security,” actually prevent or reduce the access possibilities of the services.

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of U.S. intelligence based on the legal framework of the United States.

Regarding encryption technologies, such as in the case of “data at rest” in data centers, as specifically mentioned by Google LLC as a technical measure, it should be noted that Google LLC, as a data importer, has the obligation to grant access or deliver personal data imported under its control, including the cryptographic keys necessary for the data to be intelligible (see Recommendations 01/2020, point 81). In other words: as long as Google LLC has the ability to access individuals' data in clear text, such a technical measure cannot be considered effective in the present case.

As Google LLC states that "to the extent that Google Analytics data for measurement transferred by website owners is personal data, it should be considered as pseudonymous," it must be taken into account that universal unique identifiers (UUIDs) do not fall within the definition of Article 4.5 of the GDPR. While pseudonymization can be a privacy-enhancing technique, unique identifiers have, as previously described, the specific intent of identifying users, not acting as a safeguard. Apart from this, it has also been previously described why the combination of unique identifiers with other elements (such as browser or device data and the IP address) and the possibility of linking such information to a Google account in any case allows for an individual to be identified.

To the extent that Google LLC refers to an "optional technical measure" through an IP anonymization feature, it should first be noted that such a measure is, as its name indicates, optional and not applicable to all transfers. Furthermore, from Google's response, it is not clear whether this anonymization occurs before the transfer or if the full IP address is transmitted to the United States and only shortened after this transfer to the United States. Therefore, from a technical standpoint, there is potential access to the entire full IP address before it is shortened.

Thus, the supplementary measures adopted, as presented by Google, are not effective to the extent that none of them address the specific issues in the present case, meaning that none of them prevent the possibilities of access by U.S. intelligence services nor render such access ineffective.

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The exceptions provided in Chapter V of the Regulation

Article 49, "Exceptions for specific situations," of the GDPR states:

"1. In the absence of an adequacy decision in accordance with Article 45(3), or of appropriate safeguards in accordance with Article 46, including binding corporate rules, a transfer or a set of transfers of personal data to a third country or international organization may only take place if one of the following conditions is met:

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a) the data subject has explicitly given their consent to the proposed transfer, after being informed of the possible risks to them from such transfers due to the absence of an adequacy decision and appropriate safeguards;

b) the transfer is necessary for the performance of a contract between the data subject and the data controller or for the implementation of pre-contractual measures taken at the request of the data subject;

(...)

The European Data Protection Board (EDPB), in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation, as attributed to it by Article 70 of the GDPR, issued Guidelines 2/2018 on the exceptions provided for in Article 49 of Regulation 2016/679. Regarding the interpretation of the assumption a) of Article 49 of the GDPR (section 2.1 of Guidelines 2/2018), the EDPB states that consent must be specific and informed about the possible risks, establishing the following: "this provision requires that data subjects are also informed of the specific risks arising from the fact that their data will be transferred to a country that does not provide an adequate level of protection and that no adequate safeguards are foreseen for the protection of the data."

In the present case, the users' consent for the storage of cookies during their visit to the website cannot be considered equivalent to having explicitly consented to the international transfer of data, as required by Article 49.1.a) of the GDPR; this consent must be obtained specifically, and for it to be valid, OCCIDENT should have previously informed the data subjects of the risks posed by the data transfers to the U.S., in light of the absence of an adequacy decision and appropriate safeguards in the sense of Article 49, paragraph 1 of the Regulation.

Regarding the possible existence of a contractual relationship, this assumption is not present, considering that Recital 111 of the GDPR requires that international data transfers based on explicit

consent must be “occasional and necessary in relation to a contract,” whereas in this case the transfers occur continuously and systematically and their necessity is not justified.

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Current legal framework

On July 10, 2023, the Commission approved the Implementing Decision (EU) 2023/1795 regarding the adequacy of the level of protection of personal data in the EU-U.S. Data Privacy Framework in accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council, so that international transfers made after this date may be covered by the aforementioned Decision.

On the website <https://www.dataprivacyframework.gov/s/>, it can be verified that Google LLC has certified its adherence to the principles of the Data Privacy Framework until September 13, 2024, due to the need to renew this certification annually.

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Certification. Therefore, currently, international data transfers to Google LLC in the U.S. are covered by the EU-U.S. Data Privacy Framework.

However, it must be concluded that, on the date when the events subject to the claim occurred, OCCIDENT cannot invoke any of the tools provided in Chapter V of the GDPR to justify the international transfers of personal data of visitors to its website, particularly unique identifiers, IP addresses, browser data, and metadata, to Google LLC in the United States, with the doctrine established by the Court of Justice of the European Union in the ruling of the Schrems II case being fully applicable, which invalidated the decision on the "EU-U.S. Privacy Shield."

Consequently, in accordance with the evidence available in this procedural resolution of warning, it is considered that the known facts constitute an infringement attributable to OCCIDENT, for violation of Article 44, "General principle for transfers," of the GDPR, which states that personal data transfers that are subject to processing or will be processed after their transfer to a third country or international organization shall only take place if, subject to the other provisions of the GDPR, the controller and the processor comply with the conditions established in this chapter, including those related to further transfers of personal data from the third country or international organization to another third country or another international organization.

V

Typification and qualification of the infringement of Article 44 of the GDPR

The violation of Article 44 of the GDPR constitutes the commission of the infringements typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total global annual turnover of the preceding financial year, opting for the higher amount:

(...)

c) the transfers of personal data to a recipient in a third country or an international organization pursuant to Articles 44 to 49;

(...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

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For the purposes of the statute of limitations, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

l) The international transfer of personal data to a recipient located in a third country or to an international organization, when the guarantees, requirements, or exceptions established in Articles 44 to 49 of Regulation (EU) 2016/679 are not met. (...)"

VI

Warning

Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," in its third paragraph provides that:

"3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After that period, it shall expire, and consequently, the proceedings shall be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case."

In accordance with the evidence available at this moment of resolution of the procedure, the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, for the infringement committed by violating the provisions of Article 44 of the GDPR, it is appropriate to issue a warning to OCCIDENT.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ISSUE A WARNING to OCCIDENT GCO, S.A.U. DE SEGUROS Y REASEGUROS, with NIF A28119220, for an infringement of Article 44 of the GDPR, typified in Article 83.5 of the GDPR.

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SECOND: NOTIFY the present resolution to OCCIDENT GCO, S.A.U. OF INSURANCE AND REINSURANCE.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested

party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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